ANSWER KEY & MARKING SCHEME SET 1

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(d)** each side must feel heard	Procedural justice
2	**(d)** courts laying down rules where law was silent	Filled a gap
3	**(b)** judges decide without pressure from the government	Free and impartial
4	**(c)** it punished communities for birth rather than deeds	Collective stigma
5	**(b)** original jurisdiction	Direct hearing
6	**(d)** Indian Penal Code	A new criminal code
7	**(d)** they were against the freedoms in the Constitution	Constitutional values
8	**(b)** supervision of subordinate courts	Superintendence
9	**(b)** those who cannot afford a lawyer	Access to justice
10	**(d)** one hierarchy from the district court to the Supreme Court	Appeal system

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Free from pressure (1); Fair decisions (1).	1+1
12	Protects Fundamental Rights (1); Interprets the Constitution (1).	1+1
13	Fast and free (1); Settlement by consent (1).	1+1
14	They violate rights (1); Society's values change (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Laws set rules (1); Courts apply them fairly (1); Remedies are given (1).	1+1+1
16	Law absent on workplace harassment (1); Court made guidelines (1); Later Parliament passed a law (1).	1+1+1
17	Lawyers argue (1); Judges listen and decide (1); Both uphold law (1).	1+1+1
	OR: Labelled by birth (1); Restricted movement (1); Stigma carried forward (1).	1+1+1
18	Original jurisdiction (1); Centre-state conflict (1); Final decision (1).	1+1+1
	OR: Show unfair practices (1); Guide reforms (1); Teach value of rights (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	Meaning of law (1); Criminal Tribes Act (1); Press Act (1); Repeal (1); Lessons (1).	1+1+1+1+1
	OR: Tribunals (1); Mediation (1); Arbitration (1); Lok Adalat (1); Benefits (1).	1+1+1+1+1
20	Supreme Court (1); High Courts (1); District courts (1); Appeal route (1); Importance (1).	1+1+1+1+1
	OR: Article 32 (1); Article 226 (1); Writs (1); Example (1); Importance (1).	1+1+1+1+1

Mistakes to avoid:

- Saying that courts make laws; the legislature makes laws, the executive implements them and the judiciary interprets them and settles disputes.
- Mixing Article 32 (Supreme Court) with Article 226 (High Courts) for writs.
- Writing the retirement ages the other way round; Supreme Court judges retire at 65 and High Court judges at 62.
- Confusing substantive justice (fairness of the outcome) with procedural justice (fairness of the process, each side is heard).
- Dating the Supreme Court to 1947; it came into existence on 26 January 1950.
- Confusing Lok Adalat (settlement by compromise) with mediation (a neutral third party helps the parties agree) and with a court judgement.

Evaluator's note: Award step marks as shown; accept any correct alternative method. In internal-choice questions, evaluate only the option attempted. Deduct up to ½ mark for missing units or figures where required.

MASTERMIND

ANSWER KEY & MARKING SCHEME SET 2

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(b)** a District Judge	Appointed by the Governor with High Court's advice
2	**(a)** a dispute over land between neighbours	Private rights
3	**(b)** ask a higher court to review a decision	Correcting errors
4	**(d)** specialised matters are decided by experts	Subject knowledge
5	**(a)** filed by the State against an accused	Offence against society
6	**(a)** its rulings bind all courts	Article 141
7	**(d)** it is faster and less costly	Reduces burden on courts
8	**(b)** the legislature makes laws and courts interpret and apply them	Separation of functions
9	**(c)** do complete justice in a case	Wide powers for justice
10	**(c)** a mediator helps parties agree, while an arbitrator gives a binding decision	Different roles

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Original: direct hearing (1); Appellate: hears appeals (1).	1+1
12	Delay in justice (1); Costs to litigants (1).	1+1
13	Higher court reviews (1); Errors can be corrected (1).	1+1
14	Near to people (1); Hear most cases (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Outcome vs process (1); Example of fair trial (1); Both must exist (1).	1+1+1
16	Collegium advice (1); Fixed tenure (1); Removal only by impeachment (1).	1+1+1
17	Few judges (1); Many appeals (1); Technology and ADR (1).	1+1+1
	OR: One hierarchy (1); Appeals go up (1); Common law throughout (1).	1+1+1
18	Appeals (1); Transfer of cases (1); Superintendence (1).	1+1+1
	OR: Local (1); Speedy (1); Low cost (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	Original (1); Appellate (1); Advisory (1); Writ (1); Examples (1).	1+1+1+1+1
	OR: FIR (1); Charge (1); Hearing (1); Judgment (1); Appeal (1).	1+1+1+1+1
20	Meaning (1); Standing (1); Hingorani case (1); Vishaka (1); Cautions (1).	1+1+1+1+1
	OR: Number of judges (1); Procedures (1); Technology (1); ADR (1); Gram Nyayalaya (1).	1+1+1+1+1

Mistakes to avoid:

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ANSWER KEY & MARKING SCHEME SET 3

Chapter 11: **The Role of the Judiciary in Our Society** | Class 8 Social Science | Maximum Marks: 40

SECTION — A (Objective Type) — Answers — 10 × 1 = 10

Q.	Correct Option	Brief Reasoning
1	**(d)** it is void because it violates the Constitution	Judicial review
2	**(c)** seeks enforcement of Fundamental Rights directly in higher courts	Constitutional remedy
3	**(c)** bring speedy justice to villages	Under the 2008 Act
4	**(b)** a law passed by Parliament	The number is fixed by law
5	**(d)** letting concerned persons approach the court for others	Locus standi eased
6	**(a)** too few judges and many appeals	Delays in justice
7	**(c)** Arbitration and Conciliation Act	Arbitration and Conciliation Act, 1996
8	**(d)** release of undertrial prisoners kept for long	First reported PIL
9	**(a)** late justice loses its value	Speedy trial is valued
10	**(d)** Gram Nyayalaya	Gram Nyayalayas Act, 2008

SECTION — B (Very Short Answer) — Answers — 4 × 2 = 8

Q.	Expected Answer / Value Points	Marks
11	Presumed innocent (1); Right to defend (1).	1+1
12	Others can file for them (1); Brings public issues to court (1).	1+1
13	To handle special subjects (1); Reduce load on courts (1).	1+1
14	Poor cannot pay (1); Equal access (1).	1+1

SECTION — C (Short Answer) — Answers — 4 × 3 = 12

Q.	Expected Answer / Value Points	Marks
15	Habeas corpus (1); Mandamus and prohibition (1); Certiorari and quo warranto (1).	1+1+1
16	Reduces burden (1); Saves cost (1); Maintains relations (1).	1+1+1
17	President asks opinion (1); On law or fact (1); Opinion not binding (1).	1+1+1
	OR: Relaxed standing (1); Letters accepted as petitions (1); Public causes heard (1).	1+1+1
18	Civil is private dispute (1); Criminal is offence (1); Examples differ (1).	1+1+1
	OR: Judicial review (1); Writs (1); Protect rights (1).	1+1+1

SECTION — D (Long Answer) — Answers — 2 × 5 = 10

Q.	Expected Answer / Value Points	Marks
19	Appointment (1); Tenure (1); Salary (1); Removal (1); Importance (1).	1+1+1+1+1
	OR: Check on power (1); Protect minorities (1); Interpret Constitution (1); Resolve disputes (1); Trust of people (1).	1+1+1+1+1
20	High Court powers (1); Writs (1); District courts (1); Sessions courts (1); Superintendence (1).	1+1+1+1+1
	OR: Article 32 and 226 (1); Jurisdiction (1); Binding effect (1); Appeals (1); Supervision (1).	1+1+1+1+1

Mistakes to avoid:

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